

An Act

ENROLLED SENATE
BILL NO. 1164

By: Hall and Haste of the
Senate

and

Caldwell (Trey) and Kane of
the House

An Act relating to the Department of Mental Health and Substance Abuse Services; amending Section 79 of Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, which relates to general appropriations; modifying certain date; making an appropriation; stating purpose; authorizing certain transfer; requiring that portions of certain appropriated funds be used for certain purposes; authorizing request for early transfers of certain funds for specific purpose; providing an effective date; and declaring an emergency.

SUBJECT: Department of Mental Health and Substance Abuse Services

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 79 of Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, is amended to read as follows:

There is hereby appropriated to the Department of Mental Health and Substance Abuse Services from any monies not otherwise appropriated from the Alcoholic Beverage Control Fund of the State Treasury for the fiscal year ending ~~June 30, 2025~~ June 30, 2027, the sum of Twelve Million One Hundred Eighty-five Thousand Six Hundred Fifty Dollars (\$12,185,650.00) or so much thereof as may be necessary to perform the duties imposed upon the Department by law.

SECTION 2. There is hereby appropriated to the Department of Mental Health and Substance Abuse Services from any monies not otherwise appropriated from the General Revenue Fund of the State Treasury for the fiscal year ending June 30, 2027, the sum of One Million Two Hundred Thousand Dollars (\$1,200,000.00) or so much thereof as may be necessary to perform the duties imposed upon the Department by law.

SECTION 3. From the funds appropriated to the Department of Mental Health and Substance Abuse Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature and in Section 2 of this act, the Department is authorized to transfer the sum of Five Million Nine Hundred Sixty-nine Thousand Four Hundred Sixty-three Dollars (\$5,969,463.00) to the 9-8-8 Lifeline Revolving Fund, created in Enrolled Senate Bill No. 1369 of the 2nd Session of the 60th Oklahoma Legislature.

SECTION 4. From the funds appropriated to the Department of Mental Health and Substance Abuse Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the sum of Three Million Dollars (\$3,000,000.00) shall be used for program growth and to replace funding no longer available due to the reduction of federal matching dollars.

SECTION 5. From the funds appropriated to the Department of Mental Health and Substance Abuse Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the sum of Thirty-nine Million Six Hundred Twenty Thousand Nine Hundred Eleven Dollars (\$39,620,911.00) shall be used to meet the obligations required in the consent decree pursuant to case number 23-cv-81-GKF-JFJ filed in the United States District Court for the Northern District of Oklahoma.

SECTION 6. From the funds appropriated to the Department of Mental Health and Substance Abuse Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the sum of One Million Three Hundred Thousand Dollars (\$1,300,000.00) shall be used to maintain services for veterans and their families.

SECTION 7. The Commissioner of Mental Health and Substance Abuse Services may request through the Director of the Office of Management and Enterprise Services the early transfer by the

Oklahoma Tax Commission of tax collections to the General Revenue Fund for the purpose of early allocation to the Department of Mental Health and Substance Abuse Services' disbursing funds to alleviate cash flow problems.

SECTION 8. This act shall become effective July 1, 2026.

SECTION 9. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 14th day of April, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 16th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____